

# The Scheme on Labelling of Environment Friendly Products (Eco-Mark)

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The Scheme on Labelling of Environment Friendly Products (Eco-Mark)

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The Scheme on Labelling of Environment Friendly Products (Eco-Mark)

Rule THE-SCHEME-ON-LABELLING-OF-ENVIRONMENT-FRIENDLY-PRODUCTS-ECO-MARK of 1991

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The Scheme on Labelling of Environment Friendly Products (Eco-Mark)

Published vide Notification Gazette of India, Extraordinary, Part 2, Section 3 (ii), dated 21st February, 1991.

G.S.R. 85 (E), dated 20th February. - (1) The Government have decided to institute a Scheme on Labelling of Environment Friendly Products. The Scheme will operate on a national basis and provide accreditation and labelling for household and other consumer products which meet certain environmental criteria along with quality requirements of the Indian Standards for that product. The Label shall be known as the "ECOMARK" and will be of the design to be notified. Any product which is made, used or disposed of in a way that significantly reduces the harm it would otherwise cause the environment could be considered as Environment Friendly Product.

2.

Objectives of the Scheme.

- The specific objectives of the scheme are as follows :-

(i)

To provide an incentive for manufactures and importers to reduce adverse environmental impact of products.

(ii)

To reward genuine initiatives by companies to reduce adverse environmental impact of their products.

(iii)

To assist consumers to become environmentally responsible in their daily lives by providing information to take account of environmental factors in their purchase decisions.

(iv)

To encourage citizens to purchase products which have less harmful environmental impacts.

(v)

Ultimately to improve the quality of the environment and to encourage the sustainable management of resources.

3.

Administrative and Organisational Structure.

- There will be three stages leading to the award of the "ECOMARK" :-

1.

A steering committee set up in the Ministry of Environment and Forests, to determine the product categories for coverage under the Scheme and also formulate strategies for promotion, implementation, future development and improvement in the working of the Scheme.

2. A technical committee, set up in the Central Pollution Control Board, to identify the specific product to be selected and the individual criteria to be adopted, including, wherever possible, inter-se priority between the criteria if there be more than one.

3. The Bureau of Indian Standards to assess and certify the products and draw up a contract with the manufactures, allowing the use of the label, on payment of a fee.

(3.1.1) Steering Committee : - A Steering Committee shall be set up in the Ministry of Environment and Forests by the Central Government to decide the products categories to be taken up under the Scheme, and to formulate the strategies for promotion, future development and improvement of this Scheme. The product categories will be notified from time to time.

The functions of the Steering Committee shall be as follows :

(a)

Selection of the logo for the ECOMARK".

(b)

Activities related to creation of mass awareness for promotion and acceptance of the Scheme.

(c)

Determining the product category to be taken up under the scheme.

(d)

Co-ordinating ways of ensuring that industry is actively involved in the Scheme.

(e)

Securing the involvement of other Ministries, Government Departments, Industry Associations and other Non-Governmental Organisation and Consumer Organisations.

(f)

Formulation of strategies for future development of the Scheme.

(g)

Identifying institutions in India or outside which are engaged in the standardization of any article or process or improvement of quality of any article or process and recommending assistance to build consumer awareness.

(h)

Supporting any research for the formulation of ECOMARK products in the interest of Consumer groups.

The composition of the Committee shall be as follows :-

(i) Secretary, Department of Environment and Forests

Chairman

(ii) Secretary, Department of Civil Supplies (or his representative)

Member

(iii) Secretary, Ministry of Industry (or his representative)

Member

(iv) Secretary, Ministry of Chemicals and Petrochemicals (or his representative)

Member

(v) Secretary, Ministry of Agriculture (or his representative)

Member

(vi) Secretary, Ministry of Information and Broadcasting (or his representative)

Member

(vii) Director General of Technical Development (or his representative)

Member

(viii) Director General, Council of Scientific and Industrial Research (or his representative)

Member

(ix) Director General, Health Services (or his representative)

Member

(x) Development Commissioner, Small Scale Industries (or his representative)

Member

(xi) Chairman, Central Pollution Control Board

Member

(xii) Not more than five non-officials, to be nominated by the Central Government, to represent the interests of industry, consumer groups or other non governmental organisations; of which at least two will represent consumer groups.

Member

(xiii) Officer in charge, "ECOMARK" in the Ministry of Environment and Forests.

Member-Secretary

In case of special requirement of expertise in specific fields, the Committee may invite experts as special invitees.

The terms of the Committee shall be for three years or until reconstituted.

(3.1.2.) Technical Committee : - A Technical Committee shall be constituted by the Central Government to identify the individual products and determine the criteria for awarding the ECOMARK. The Committee shall function in the Central Pollution Control Board, Delhi.

The following shall be the functions for the Technical Committee :-

(i)

Identification of specific products for classifying as environment friendly.

(ii)

Reviewing the existing state of knowledge and the environmental criteria being followed in other countries.

(iii)

Recommend the most appropriate criteria and parameters to designate various products as environment friendly, including the most important criteria or individual products that have been specified for the purpose and their inter-se priority, whenever possible.

(iv)

Review the various technologies available for determining the criteria.

(v)

Recommend various laboratories and analysts for product assessment to the Ministry of Environment and Forests.

(vi)

Evaluation of the environmental impact of the products and criteria from time to time.

(vii)

To review from time to time the implementation of the schemes by the Bureau of Indian Standards (BIS), including the sample inspections done by it.

(viii)

Set up sub-committees for each product category if so required, including formulation of test programmes for comparative testing of products by consumer organisations.

(ix)

The Technical Committee may set up expert panels to advise it for specific products.

The composition of the Committee shall be :-

(i) Chairman, Central Pollution Control Board.

Chairman

(ii) Director General, Bureau of Indian Standards, New Delhi

Member

(iii) Director, National Environmental Engineering Research Institute, Nagpur

Member

(iv) Director, National Chemical Laboratory, Pune

Member

(v) Director General, National Test House, Calcutta

Member

(vi) Director, Industrial Toxicology Institute, Lucknow

Research Member

(vii) Director, National Institute of Occupational Health, Ahmedabad

Member

(viii) Not more than five non-officials to represent the interest of industry and consumer groups, of which at least three will represent the Consumer groups be nominated by the Central Government.

(ix) Officer in charge, (Eco-Mark Scheme) Control Pollution Control Board.

Member-Secretary

The Committee may co-opt experts on different products, as special invitees.

The terms of the Committee shall be for three years or until reconstituted.

(3.1.3) Administration : - The Bureau of Indian Standards (BIS) shall implement the Scheme.

Following shall be functions of the BIS :

1. Assess the product or Ecomark, certify the product for award of the Ecomark;
2. Review suspend or cancel a licence, for the use of the Ecomark;
3. Mark inspections, and take such samples for analysis of any material or substances as may be necessary to see whether any article or product in relation to which the Ecomark has been used, conforms to the contract or whether the Ecomark is improperly used in relation to any article or process with or without a licence;
- 4.

Certification and Licencing.

- 4.1 Under the Scheme the manufactures shall apply for testing and certification of products which fall under the notified categories in terms of their compliance with published environmental criteria in the prescribed form. The terms and conditions governing operations of licences including fees shall be as per the Bureau of Indian Standards Act and the regulations framed thereunder.

4.2

Testing and certification shall be carried out by the Bureau of Indian Standards. For product categories which have the Indian Standards mark, the Bureau of Indian Standards will ordinarily complete the task of certification within a period of three months. Products certified as eligible for the ECOMARK shall be licenced to carry the Ecomark for a prescribed time period.

4.3

The product shall be reassessed after the prescribed period and the licence fee shall have to be paid again for the mark.

5.

The Criteria for Ecomark.

- Environmental criteria for each product category will be notified by the Central Government and later on shall be translated into Indian Standards by the Bureau of Indian Standards. The criteria shall be for broad environmental levels and aspects, but will be specific at the product level. Products will be examined in terms of the following main environmental impacts :

(a)

That they have substantially less potential for pollution than other comparable products in production, usage and

disposal.

(b)

That they are recycled, recyclable, made from recycled products or biodegradable, where comparable products are not.

(c)

That they make significant contribution to saving non-renewable resources, including non-renewable energy sources and natural resources, compared with comparable products.

(d)

That the product must contribute to a reduction of the adverse primary criteria which has the highest environmental impact associated with the use of the product, and which will be specifically set for each of the product categories.

In determining the primary criteria for a product the following shall be taken into account :-

(a)

Production process including source of raw material;

(b)

Case of Natural Resources;

(c)

Likely impact on the environment;

(d)

Energy conservation in the production of the product;

(e)

Effect and extent of waste arising from the production process;

(f)

Disposal of the product and its container;

(g)

Utilization of "Waste" and recycled materials;

(h)

Suitability for recycling or packaging

(i)

Biodegradability;

The criteria shall be reviewed from time to time. The draft criteria shall be release for public comments for a period of sixty days.

6.

Period of Award.

- The label shall be awarded for a minimum period of one year and shall roll forward annually. The Bureau of Indian Standards have the powers to withdraw the licence at any time if they find any misleading information. The award may also be withdrawn in case of any change in criteria due to the advancement of technology or any other valid reasons, in consultation with the technical committee. The time period of the award may be reviewed from time to time.

7.

The Logo.

- The Logo for the "ECOMARK" shall be as notified by the Central Government.

8.

Consumer Awareness.

- The Ministry of Environment and Forests shall take appropriate measures to launch a country wide mass awareness campaign, including encouraging consumer groups. Assistance will be given to consumer organisations for comparative testing of products and dissemination of information to the public.

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